REPORTABLE (28)

INDUCON INVESTMENTS (PRIVATE) LIMITED
v
(1) STONCOR MINING SUPPLIES (PRIVATE) LIMITED (2) CRISTIANO SANTINI (3) FRANCO D'AGNOLO

SUPREME COURT OF ZIMBABWE
BHUNU JA, MAKONI JA & CHITAKUNYE JA
HARARE: 02 OCTOBER 2025, 11 FEBRUARY 2026 & 22 APRIL 2026

T. Magwaliba, for the appellant

T. Zhuwarara, for the respondents

CHITAKUNYE JA: This is an appeal against the whole judgment of the High Court of Zimbabwe, (Commercial Division) ("the court *a quo*"), handed down on 17 March 2025, under case number HCHC 765/23 as judgment number HH 169/25. The court *a quo* granted the first respondent's claim for the eviction of the appellant from certain mining claims whilst dismissing the appellant's counter claim for a declaration of the right to remain on the mining claims.

FACTUAL BACKGROUND

The appellant and the first respondent are companies duly incorporated in terms of the laws of Zimbabwe. The second and third respondents are the shareholders and co-directors of the first respondent.

In 2017 the appellant and the first respondent, through its directors, entered into a business arrangement whereby the appellant was to mine granite blocks on claims owned by the first respondent. The claims comprised Rusumba 7 registration number 28321 BM, Rusumba 8 registration number 28322 BM and Rusumba 9 registration number 28323 BM

("the claims"), in Uzumba, Mashonaland East Province. They also entered into a Tribute agreement for three years over the same claims.

The tribute agreement was approved by the Ministry of Mines and Mining Development (Mashonaland East Province) on 16 February 2017 as Tribute number 01 of 2017.

The parties are, however, not agreed on the effective arrangement between them. The appellant alleged that it was an agreement for the sale of the three mining claims and mining equipment thereon and that the tribute agreement was entered into to enable it to meet administrative requirements by the relevant administrative authorities. It was thus just for its convenience. The first respondent on the other hand contended that the envisaged agreement of sale never materialized hence what effectively governed their relationship was the tribute agreement.

It is pertinent to note that irrespective of whichever was the effective agreement, the parties agreed that the appellant would be paying for its obligations to the first respondent by selling the mined granite blocks to the first respondent at a discounted price from the going market rates from time to time either directly to the first respondent or to first respondent's related parties. It is also agreed that at the initial stages the parties discussed the possibility of the appellant buying shares in the first respondent.

It is common cause that despite the tribute agreement having expired on 14 February 2020, the appellant remained in occupation of the claims. In October 2023, the first respondent gave the appellant three months' notice to terminate the tribute agreement and for the appellant to vacate the claims. The appellant refused to vacate contending that its occupation of the claims was in terms of an agreement of sale and not the tribute agreement.

As a consequence of the standoff, the first respondent issued summons for the eviction of the appellant and all those claiming occupation through it from the aforesaid mining claims on the basis of its termination of the tribute agreement.

At all material times the appellant, acting through its directors, employees, assignees, or persons claiming occupation under it, continued to work on the said claims.

The appellant contested the claim by the respondent and made a counter claim seeking a declaratory order and other ancillary relief. The relief sought was basically for the confirmation of its right to remain on the claims premised on the alleged agreement of sale the parties had entered into as per its factual conspectus.

In its determination the court *a quo* granted the respondents' claim for the eviction of the appellant from the mining claims and consequently dismissed the appellant's counter claim.

Aggrieved by the court *a quo*'s decision the appellant noted the present appeal against both the granting of the respondents' main claim and the dismissal of its counter claim.

The relief sought was couched as follows:

"**WHEREFORE**, the appellant seeks the following relief:

1. That the instant appeal succeeds with costs.
2. That the judgment of the court *a quo* in case number HCHC 765/23 (judgment HH169/25) be set aside and substituted with the following.

'1. The Plaintiff's claim be and is hereby dismissed with costs.

2. The first defendant's claim in reconvention be and is hereby granted with costs.'"

The appeal was initially heard on 02 October 2025, and judgment was reserved. The parties were subsequently invited to address the court on the validity of the notice of appeal in light of the relief sought relating to the counter claim. On 11 February 2026 counsel for the

parties duly made submissions on the subject. The issue was whether para 2 of the substitutive relief was exact.

SUBMISSIONS BEFORE THIS COURT

At the hearing, Mr *Magwaliba,* for the appellant submitted, *inter alia*, that para 2 of the substitutive relief sought was exact as it was clear that the appellant was seeking that the claim in reconvention be granted. He submitted that the relief sought could be amended as it was incompetent and not inexact. Counsel suggested that para 2 be amended with the inclusion of paras (a) to (g) of the relief stated in the claim in reconvention sought before the court *a quo*.

Whilst maintaining that the relief sought, as it is, was exact, counsel conceded that the relief was incompetent and not executable hence it needed to be amended. He also submitted that the inadequacies in the substitutive relief could be improved upon and that such inadequacies did not render the relief sought inexact. In this regard he referred to the case of *Gula-Ndebele* v *Bhunu N.O* 2011 (1) ZLR 181 (S) in arguing that an exact relief sought is capable of being amended.

Counsel argued that the relief sought was clear, as both parties and the Court knew what was in the counterclaim. When asked how such a relief could be executed, counsel conceded that the Sheriff would be unable to execute the order. He submitted that, if the appeal was allowed and a writ issued, the Registrar could incorporate the missing paragraphs in the court order. He also submitted that besides what the registrar could do, the appellant could approach the Court with an application for the amendment of the order to include paras (a) to (g) of the counter claim. In making that submission, counsel relied on r 29 of the High Court Rules, 2021 which provides for the correction, variation and rescission of judgments and orders granted in certain defined circumstances. In supporting his arguments, counsel also relied on

r 49 of the Supreme Court Rules and argued that an oral application could be made for an amendment at the hearing of the matter, therefore the relief could be amended.

Per contra, Mr *Zhuwarara,* for the respondents, submitted, *inter alia*, that by virtue of the defective relief sought the notice of appeal was a nullity and a nullity cannot be amended. He submitted that the relief sought was inexact as it required the court to go into the record and search for the specifics of the claim in reconvention. He further argued that the said para 2 of the substitutive relief was inexact as it does not inform the holder or executor of the order the relief that would have been granted by the court. Counsel relied on the case of *Blue Ranges Estates (Pvt) Ltd* v *Muduviri & Anor* 2009 (1) ZLR 368 (S). He also submitted that r 49 of the Supreme Court Rules, sought to be relied upon by the appellant, was inapplicable as an application under that rule must be made before the hearing of the appeal, and this matter had been fully argued. He thus urged that the matter be struck off the roll due to the fatally defective notice of appeal.

ISSUE FOR DETERMINATION

Whether or not the relief sought is exact?

ANALYSIS

Rule 44 (1) (e) of the Supreme Court Rules, 2025 provides as follows:

> "44. (1) Every civil appeal shall be instituted in the form of a notice of appeal in Form 13 signed by the appellant or his or her legal practitioner, which shall state —
>
> (e) the exact relief sought"

What is meant by the terms "exact relief sought" was defined by this Court in *Bonde* v *National Foods Limited & Ors* SC 11/21, wherein on para 19, it was stated that:

> "The phrase 'exact nature of the relief sought' means that an appellant must inform the Court of the relief he/she wants. The Supreme Court's mandate is to examine the correctness or otherwise of a decision of the lower court. In doing so the court is guided

> by the relief sought by the appellant. The need for the relief sought on appeal to be exact cannot be over emphasised."

In *Sambaza* v *Al Shams Global BVI Limited* SC 03/18 on p 7, the court in dealing with the issue that a relief sought should be exact, stated the following:

> "The exact nature of the relief sought referred to in r 29 (1) (e) refers to the type or characteristics of the relief sought. This means the relief sought must be of the type relevant to the dispute between the parties. Therefore, the nature of the relief sought was wrongly framed and is incompetent as it refers to allowing an appeal and setting aside of an order, remedies which could not have been granted by the court *a quo* in a court application. The nature of the relief sought in substituted orders (a) and (b) does not therefore comply with the requirements of r 29 (1)(e)."

In *Madyavanhu* v *Saruchera & Ors* SC 75/17 at p 5-6 the court reiterated that:

> "Rule 29 (1)(e) is specific in its language and requires that the relief sought be exact and competent so that the court is left in no doubt as to what exactly the appellant seeks."

It is pertinent to note that r 29 (1) (e) was the predecessor to r 37 (1) (e) of the Supreme Court Rules 2018, which itself is the precursor to the current r 44 (1) (e) of the Supreme Court Rules 2025 and is couched in identical terms.

The above authorities are thus clear that the relief sought must be clear as to what order the appellant seeks from the Court. This, therefore, means that it should be apparent, *ex facie* the relief sought, what the appellant seeks the Court to grant. Thus, the nature and characteristics of the relief must be stated. *In casu,* stating that: 'The first defendant's claim in reconvention be and is hereby granted with costs' does not disclose the nature and characteristics of the relief sought. Such a relief is meaningless, vague and inexact.

Mr *Magwaliba'*s main argument that the relief sought was merely incompetent and subject to an amendment cannot be sustained. An incompetent relief can be amended, whilst an inexact relief is a relief which cannot be amended due to the nature of the defect afflicting it. In *Stella Mundi (Private) Limited* v *Murimi Two Four Seven (Pvt) Ltd & Anor* SC

56/25, a preliminary point was raised that the relief sought was fatally defective for the reason that the relief sought was incompetent. On p 8, the court stated as follows:

> "After engagement with the court Mr *Mubaiwa* abandoned the preliminary objection, and rightly so, after conceding that the defect in the relief sought related to a question of incompetence and not the exactness of the relief sought. This did not render the whole appeal defective, as such relief could be amended. See *Gula Ndebele* v *Chinembiri Bhunu* SC 34/10 which is a judgement of three judges and further agreed to by the then Chief Justice.
>
> Mr Donzvambeva then moved the court to allow an amendment to the relief sought to an alternative prayer remitting the matter to the court *a quo* if the court were to find merit in the appellant's contentions. Mr Mubaiwa was not opposed to the application and it was accordingly granted by consent."

In *Gula Ndebele* v *Bhunu* N.O (*Supra*) at p 184A-B the Court held that:

> "It is common cause that the relief sought in the notice of appeal could not be granted by this Court since a decision on the merits had not been made by the court *a quo*. The question is whether this fact renders the notice of appeal fatally defective because if it does, the notice of appeal is null and void and cannot be saved by an amendment…
>
> The rule requires simply that the exact nature of the relief sought be stated in the notice of appeal. Thus, in so far as the prayer is for the appeal to be allowed and the application to be dismissed with costs, there is *prima facie* compliance with the Rule. However, it was submitted on behalf of the respondent that the relief sought must be one which the Court can grant and that a prayer which the Court cannot competently grant renders the notice of appeal null and void. I do not agree.
>
> In my view, once the prayer clearly sets out the nature of the relief sought, as it does in this case, r 29(1)(e) has been complied with. This being so, the Court can and may amend the Notice of appeal upon application being made before the hearing subject to the rules governing applications of this nature." (Emphasis)

In *Gula-Ndebele* v *Bhunu N.O*, (*supra*) the nature of the relief sought, a dismissal of the application, was exact and thus complied with the Rules of the court, but was rendered incompetent as it sought the dismissal of the application on the merits yet the court *a quo* had not rendered a decision on the merits. Upon realising the error counsel for the applicant sought a remittal of the matter for the determination of the merits instead of dismissal should the appeal succeed.

Rule 49, which appellant's counsel sought to rely on as an escape route provides that:

> "49. If in the course of the hearing of an appeal any party wishes to make any other application, he or she may do so verbally on such terms as the court may allow."

The rule clearly states that an oral application can be made by a party in the course of hearing an appeal. This matter was fully argued, and judgment was reserved. The appellant could have made the oral application for the amendment of the relief sought, if so minded, before the matter was fully argued but this was not done.

In *casu*, the appellant, in para 2 of the substitutive relief, seeks the claim in reconvention to be granted with costs. The paras (a) to (g) referred to in Mr *Magwaliba's* submissions were not stated in the notice of appeal and in the heads of argument. The nature and characteristic of the relief in the counter claim was thus not disclosed. This is not just a matter of an incompetent relief, that is, one which the court cannot grant; it is a case of the very gravamen of the relief sought not being stated. The suggestion that the registrar or the court can sift through the record of proceedings in search of what the counterclaim sought is, is a euphemistic confirmation that the notice of appeal is fatally defective by not stating that which the rules require to be stated without fail. The Court cannot be expected to engage in such an exercise when the mandatory provisions of the rules state clearly that the relief sought must be exact. The relief as couched does not inform the court or anyone else, for that matter, the nature and character of the relief sought for the court to ascertain if such relief is proper for the court to grant. A relief that is exact must be capable of enforcement without the need to sift through the record of proceedings to ascertain its contents; it must tell whoever comes across it, its nature and character.

In *Blue Ranges Estates (Pvt) Ltd* v *Muduviri & Anor* 2009 (1) ZLR 368 (S), it was stated that,

> "The order striking the appeal off the roll could only be made following a finding on the nature of the order from which relief was being sought on appeal. The order made by the late MUCHECHETERE JA in the *Croc Ostrich Breeders* case *supra* is of no

> assistance in the determination of the question raised by this application. It is an unspeaking order which does not disclose the facts on which it was based."

Having found that the relief sought is not exact, this renders the notice of appeal fatally defective; thus, the appeal ought to be struck off the roll. In *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S), KORSAH JA said at 220 B-D:

> "… a notice of appeal which does not comply with the rules is fatally defective and invalid. That is to say, it is a nullity. It is not only bad but incurably bad, and unless the Court is prepared to grant an application for condonation of the defect and to allow a proper notice of appeal to be filed, the appeal must be struck off the roll with costs: *De Jager* v *Diner & Anor* 1957 (3) SA 567 (A) at 574 C-D. In *Hattingh* v *Pienaar* 1977 (2) SA 182 (O) at 183, KLOPPER JP held that a fatally defective compliance with the rules regarding the filing of appeals cannot be condoned or amended. What should actually be applied for is an extension of time within which to comply with the relevant rule. With this view I most respectfully agree; for if the notice of appeal is incurably bad, then, to borrow the words of LORD DENNING in *McFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I, 'every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse.'"

In casu, the notice of appeal does not comply with r 44(1)(e); such non-compliance renders the notice of appeal fatally defective. In the result, it is our considered view that the appeal ought to be struck off the roll as it is a nullity.

Regarding costs, the circumstances of the matter are such that each party must bear its own costs. The issue from which the decision was made was not raised by the parties despite the glaring defect.

DISPOSITION

The finding that the relief sought is not exact renders the notice of appeal fatally defective and thus rendering the notice of appeal a nullity. It is trite that a nullity cannot be amended. The substitutive relief cannot be amended as prayed for by the appellant. The matter ought to be struck off the roll.

Accordingly, it is ordered that:

1. The matter be and is hereby struck of the roll.
2. Each party shall bear its own costs.

BHUNU JA : I agree

MAKONI JA : I agree

Dube, Manikai & Hwacha, appellant's legal practitioners.

Gill Godlonton and Gerrans, 1st, 2nd and 3rd respondents' legal practitioners.